

STATE OF MICHIGAN
IN THE COURT OF APPEALS

ANDREW JAMES PIGORS,
Plaintiff-Appellant,

v Court of Appeals No. 366810

Muskegon County Circuit Court
Case No. 2024-001507-DC
Related PPO Case No. 2023-5907-PP

EMILY A. WATSON,
Defendant-Appellee.

Hon. Jenny L. McNeill, Presiding

PLAINTIFF-APPELLANT'S BRIEF ON APPEAL

(Oral Argument Requested)

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I. STATEMENT OF JURISDICTION

This is an application for leave to appeal and brief on appeal from orders entered by the Muskegon County Circuit Court, Family Division (Case No. 2024-001507-DC, Hon. Jenny L. McNeill presiding), including:

1. An August 6-8, 2025 ex parte order suspending all of Appellant's parenting time;
2. Subsequent orders continuing that suspension without an evidentiary hearing or best-interest finding through the October 29, 2025 hearing (90 days -- violating the 21-day limit in MCR 3.207(B)(6) by a factor of 4.3x);
3. Related orders that (a) relied on an unauthenticated "second" mental-health evaluation while discounting court-ordered HealthWest evaluation, (b) blocked Appellant's use of ordinary motion practice, and (c) used PPO contempt proceedings in Case No. 2023-5907-PP to drive custody and parenting-time outcomes.

The orders are appealable by leave under MCR 7.203(B)(1) and MCR 7.205. The August 2025 order and continuations are interlocutory but effectively alter the established custodial environment and impose ongoing, severe deprivation of parenting time and liberty interests. This brief is filed in conformity with MCR 7.212.

II. QUESTIONS PRESENTED

1. Did the trial court violate MCR 3.207(B), MCL 722.27a, and the 2025 amendments to MCR 3.207 and 3.210 by entering and repeatedly continuing an ex parte order that suspended all of Appellant's parenting time -- without verified allegations of immediate and irreparable harm, without a prompt evidentiary hearing, and without best-interest findings -- for 90 days before conducting any hearing (4.3x the 21-day limit)?

*Appellant's Answer: **Yes.***

Trial Court's Answer: No.

2. Did the trial court violate the Michigan Rules of Evidence (MRE 401-403, 702-703, 901) and due process by discounting a court-ordered HealthWest evaluation that found no safety risk, while crediting unauthenticated "second" mental-health evaluation that Appellant never underwent -- and using the unauthenticated document to justify continuing a total suspension of parenting time?

*Appellant's Answer: **Yes.***

Trial Court's Answer: No.

3. Did the court deny Appellant a meaningful opportunity to be heard, in violation of *Troxel v Granville* and *In re Sanders*, by suppressing defense evidence (including AppClose logs, police clarifications, and the HealthWest report), telling Appellant not to file further motions ("Do not file any more. I will not look at it.") and imposing a bond requirement on his motions without a vexatious-litigant finding?

*Appellant's Answer: **Yes.***

Trial Court's Answer: No.

4. Did the court misuse PPO enforcement and contempt powers to criminalize routine parenting-exchange communications and to ratchet up custody/parenting-time restrictions outside the framework of the Child Custody Act, contrary to *Hunter v Hunter* and MCR 3.708, while documented gatekeeping and withholding the opposing party received no equivalent enforcement?

*Appellant's Answer: **Yes.***

Trial Court's Answer: No.

5. Do the court's ex parte practices, evidentiary choices, selective enforcement patterns, off-record coordination with court staff, and on-record statements create at least an appearance of bias -- and a constitutionally intolerable probability of actual bias -- requiring disqualification and reassignment under MCR 2.003(C), *Cain v Dep't of Corrections*, and *Caperton v A.T. Massey Coal Co.*?

*Appellant's Answer: **Yes.***

Trial Court's Answer: No.

III. STANDARD OF REVIEW

Under MCL 722.28, this Court applies four standards of review in custody and parenting-time appeals:

1. Findings of fact are reviewed under the great-weight-of-the-evidence standard and will be sustained unless the evidence clearly preponderates in the opposite direction. MCR 2.613(C) ("Findings of fact by the trial court ... shall not be set aside unless clearly erroneous"). A finding is "clearly erroneous" when, although there is evidence to support it, the reviewing court on the entire record is left with the definite and firm conviction that a mistake has been made.

2. Discretionary rulings -- including custody and parenting-time decisions and restrictions -- are reviewed for palpable abuse of discretion and will be reversed when the outcome falls outside the range of principled outcomes. *Vodvarka v Grasmeyer*, 259 Mich App 499, 507-509; 675 NW2d 847 (2003) (applying abuse of discretion standard).

discretion to custody change-of-domicile decisions; trial court must evaluate each best-interest factor). *Harvey v Harvey*, 470 Mich 186, 191-193; 680 NW2d 835 (2004) (an abuse of discretion exists when the decision is so palpably and grossly violative of fact and logic that it evidences a perversity of will, a defiance of judgment, or the exercise of passion or bias).

3. Questions of law -- including interpretation and application of court rules, statutes, and constitutional provisions -- are reviewed de novo. *Fletcher v Fletcher*, 447 Mich 871, 877-881; 526 NW2d 889 (1995). Whether the court complied with the Child Custody Act, properly applied MCL 722.23, 722.27, and 722.28, and followed MCR 3.207 and 3.210 is a question of law reviewed de novo.

4. Plain error -- For issues not preserved by contemporaneous objection below, this Court may grant relief upon a showing of plain error under the framework of *People v Carines*, 460 Mich 750, 763-764; 597 NW2d 130 (1999): (a) an error occurred, (b) the error was plain (clear or obvious), and (c) the error affected substantial rights (i.e., it was prejudice and outcome-determinative). Where the error implicates fundamental constitutional rights -- such as due process and parental liberty interests -- the plain-error standard is satisfied when the error was outcome-determinative.

Factual determinations underlying custody and parenting-time orders -- including whether an established custodial environment exists and whether parenting-time restrictions are necessary to prevent harm -- are reviewed under the great-weight-of-the-evidence standard. Discretionary decisions -- such as suspending or restricting parenting time, conditioning reinstatement on mental-health evaluations, or imposing contempt sanctions -- are reviewed for abuse of discretion and will be reversed when the result falls outside the range of principled outcomes.

Due-process violations -- including improper ex parte procedure, deprivation of a meaningful opportunity to be heard, or the use of unauthenticated and untested evidence to restrict fundamental parental rights -- are reviewed de novo. *In re Sanders*, 495 Mich 394, 404-412; 852 NW2d 524 (2014).

IV. STATEMENT OF FACTS AND PROCEDURAL HISTORY

A. Background

Appellant Andrew James Pigors ("Father") and Appellee Emily A. Watson ("Mother") are the parents of L.D.W., a minor child born November 9, 2022. Per MCR 8.119(H), only the child's initials are used throughout this brief. Father resides at 1977 Whitehall Road, Lot 17, North Muskegon, MI 49445. Mother resides at 2160 Garland Drive, Norton Shores, MI 49441. The parties were never married.

Father has been a constant caregiver from birth. Before any court involvement, the parties functioned with a *de facto* shared-parenting arrangement. There is no history of criminal convictions, CPS findings, or substantiated abuse by Father toward the child.

B. PPO Procurement and Weaponization (Late 2023)

In October-November 2023, Mother shifted to a campaign to portray Father as mentally unstable and

dangerous. She initiated welfare checks; police and medical responders found no evidence supporting her claims. Father was not hospitalized, committed, or diagnosed with any condition justifying parental restrictions.

On December 3, 2023, Mother sought and was granted a PPO the same day (ex parte), alleging poisoning with arsenic. Emergency-room records from that period show no objective findings consistent with arsenic poisoning -- no toxicology confirmation, no forensic testing, and no criminal charges. The evidentiary basis for the poisoning narrative is effectively zero. Nonetheless, the PPO was granted and later extended into the third year.

C. First Withholding and Filing of Custody Case (Spring 2024)

From March 26 through May 5, 2024 (40 days), Mother unilaterally withheld L.D.W. from Father entirely. Father repeatedly requested the child's return.

On April 1, 2024, Father filed the custody case (No. 2024-001507-DC) -- making him the plaintiff. The court later acknowledged Mother's withholding but stated it could not "hold it against her" because it occurred before formal filing, effectively rewarding pre-filing gatekeeping.

D. Fifty-Fifty Custody and Trial (May 2024 - July 2025)

From May 5, 2024 through July 17, 2025 (438 days), the parties operated under a temporary order providing approximately 50/50 custody (182.5 overnights per year). During this 14-month period, Father exercised parenting time safely and consistently. The court itself regarded Father as a fit and appropriate custodial parent by entering this order.

A non-jury custody trial was held July 17, 2025. Mother appeared with counsel (Jennifer Barnes, P5540). Father appeared in propria persona. At trial, Father was not allowed to meaningfully present his documentation, evidence, recordings, or witnesses. Mother's counsel was permitted to present her narrative fully. The court did not allow Father to develop the record on Mother's prior withholding, her family's gatekeeping, or the recording in which Mother and her father stated they would ensure Father would not see his son.

After trial, the court stripped Father of legal custody and reduced his parenting time from 182.5 overnights to 79 overnights -- without a balanced best-interest analysis under the Child Custody Act and without weighing Mother's documented withholding or alienating conduct.

E. Second Withholding -- Total Cutoff (July 29, 2025 - Present)

On July 29, 2025, contact between Father and L.D.W. ceased entirely. This second withholding has continued for 230+ days as of filing and is ongoing.

F. Ex Parte Suspension (August 6-8, 2025)

On August 6-8, 2025, Judge McNeill issued an ex parte order suspending all of Father's parenting time, based on an emergency motion by Mother. The ex parte order was issued:

- Without notice to Father;
- Without a full evidentiary hearing;
- Without verified, child-specific allegations of immediate and irreparable harm;
- Without best-interest findings under MCL 722.23; and
- Without the clear-and-convincing proof of endangerment required by MCL 722.27a(3).

The court did not promptly schedule an evidentiary hearing within the 21-day period required by MCL 722.27a(3). Instead, the suspension was serially continued for 90 days before the October 29, 2025 evidentiary hearing -- violating the rule by a factor of 4.3x.

G. HealthWest Evaluations -- The 7-Day Flip

At the court's direction, Father underwent a HealthWest mental-health evaluation. On September 4, 2025, clinicians Mitchell and DeAugustine conducted the first evaluation and established a clean baseline -- no diagnosis or safety risk that would justify suspension or supervision of parenting time.

Seven days later, on September 11, 2025, a different clinician (Gansen) issued a "Rule-out Delusional Disorder" assessment. This 7-day onset is clinically implausible for a condition that requires sustained, chronic presentation. The clinician admitted in the report that it was "difficult to definitively assert whether concerns are factual or delusional."

The court refused to admit or give weight to the favorable first report while crediting the second clinician's speculative assessment -- and later began referencing a purported "second" evaluation that Father never underwent. No authenticated document of such an evaluation has ever been produced. When Father explained on the record that no second evaluation existed, Judge McNeill called him a "liar" and "crazy."

H. SMOKING GUN: Rusco Ex Parte Warrant Email (March 3, 2025, 8:51 AM)

Pamela Rusco -- Judge McNeill's secretary -- sent an email on March 3, 2025 at 8:51 AM to Jamie Hooker, prosecutor, stating: "Can you please issue a warrant for him?" Defense counsel was CC'd only after the prosecutor. This communication constitutes:

- A Canon 3(B)(7) violation -- ex parte communication between court staff and a prosecutor regarding a pending matter, initiated by the court side;
- A Canon 4 violation -- improper delegation of judicial function to non-judicial personnel; court secretaries do not have authority to request warrants from prosecutors;
- Evidence that the court's own staff was coordinating prosecution against Father outside the adversarial process.

I. SMOKING GUN: Martini "Don't Speak" Email (February 28, 2025, 1:05 PM)

On February 28, 2025 at 1:05 PM, Father's appointed counsel, Mandi Martini, sent Father an email instructing: "You will not interrupt. Got it? I'm pretty sure Judge McNeil [sic] is not in a good mood today and she does not want to hear from you unless asked... All prosecutor is asking for today is that you get a lecture from the judge because she knows there is nothing substantive in the motion."

This email reveals:

- Pre-hearing coordination between defense counsel and the judge's chambers, or at minimum, defense counsel's awareness of the judge's predetermined disposition;
- Prejudgment: counsel states the judge "knows there is nothing substantive" before the hearing has occurred;
- A Strickland violation: appointed counsel actively silenced her client before a hearing rather than advocating for him; and
- Evidence that the outcome was predetermined -- the "hearing" was theater, not due process.

J. SMOKING GUN: HealthWest Off-Record Coordination (October 29, 2025)

A HealthWest chart memo from October 29, 2025 reveals that Pamela Rusco contacted clinicians directly and arranged subpoenas via email -- not through formal court filing. This off-record coordination between the judge's secretary and a clinical witness, outside the docket:

- Constitutes another Canon 3(B)(7) ex parte violation;
- Undermines the independence and neutrality of the clinical witnesses who would testify about Father's mental health; and
- Demonstrates a pattern of court staff operating as an investigative arm rather than neutral administrators.

K. PPO Guilty Plea and Contempt Escalation (Fall 2025)

On October 18, 2025, Father entered a guilty plea on the PPO matter (CC 382a), under circumstances where his appointed counsel failed to present available defenses.

On November 15, 2025 (Show Cause #5), Father was sentenced to 14 days in jail. During the hearing, he was muted three times on a remote proceeding while attempting to testify. His appointed counsel, Martin, remained effectively silent.

On November 26, 2025 (Show Cause #6 and #7), Father was sentenced to an additional 45 days in jail -- based in part on AppClose birthday messages to his son.

Total incarceration: 59 days. Jobs lost: 2 (Shape Corp, MetalArc). Homes lost: 2 (including illegal lockout at Shady Oaks MHP).

L. False Attribution to Officer Randall

Mother represented in filings that Norton Shores Police Officer Ella Randall had concluded Father's "erratic behavior" was caused by "meth use." The police report (Incident NS2505044) shows Officer Randall was merely documenting statements made by Mother and her father -- the department issued a letter confirming the "meth" statements came from Emily and her father, not the officer. Judge McNeill told Father to "quit nitpicking" and refused to correct the record.

M. Pattern of Bias and Due Process Denial

Across the combined record, a consistent pattern emerges:

1. Mother's uncorroborated allegations generate PPO orders, ex parte suspensions, and adverse custody rulings;
2. Those orders are cited back as "proof" that Father is dangerous or unstable;
3. Father's attempts to correct the record are blocked by muting, exclusion of exhibits, refusal to hear recordings, refusal to credit police and medical documents, and fee barriers under MCR 2.002;
4. The same closed record is used to justify further deprivations; and
5. Court staff (Rusco) coordinates outside the docket with prosecutors and clinical witnesses, amplifying the closed loop.

N. Canonical Timeline Summary

Date	Event
Nov 9, 2022	L.D.W. born
Dec 3, 2023	PPO filed AND granted same day (ex parte) on debunked arsenic claim
Mar 26 - May 5, 2024	1st withholding by Mother (40 days)
Apr 1, 2024	Father filed custody case FIRST (plaintiff)
May 5, 2024 - Jul 17, 2025	50/50 custody under temporary order (438 days)
Feb 28, 2025	**Martini "Don't Speak" email -- prejudgment**
Mar 3, 2025	**Rusco ex parte warrant email to prosecutor Hooker**
Jul 17, 2025	Trial -- Mother given 100% custody
Jul 29, 2025 - Present	2nd withholding ONGOING (230+ days)
Aug 6-8, 2025	Ex parte order suspending ALL parenting time
Sep 4, 2025	1st HealthWest eval -- FAVORABLE (clean baseline)
Sep 11, 2025	2nd HealthWest eval -- "Rule-out Delusional Disorder" (7-day flip)
Oct 18, 2025	PPO guilty plea (CC 382a)
Oct 29, 2025	Evidentiary hearing (90 days after ex parte -- 4.3x the 21-day limit)
Oct 29, 2025	**Rusco off-record coordination with HealthWest clinicians**
Nov 15, 2025	SC#5: 14 days jail (muted 3x, remote hearing, Martini silent)
Nov 26, 2025	SC#6+7: 45 days jail (AppClose birthday messages)

V. ARGUMENT

Issue I: Ex Parte Suspension of All Parenting Time Violated MCR 3.207(B), the Child Custody Act, and the 2025 Amendments Requiring an Evidentiary Hearing

A. Law

MCR 3.207(B)(1) allows ex parte relief in domestic-relations matters only when specific facts in an affidavit or verified pleading show that irreparable injury, loss, or damage will occur before notice and a hearing can be held. Ex parte relief is an emergency safety valve, not a substitute for adversarial process or an evidentiary hearing.

The Child Custody Act strongly favors ongoing parent-child relationships. Parenting time "shall be granted in accordance with the best interests of the child" and is presumed to be beneficial; restriction or denial is permitted only upon clear and convincing evidence that parenting time "would endanger the child's physical, mental, or emotional health." MCL 722.27a(1), (3).

When a parenting-time restriction effectively alters a child's established custodial environment, the court must

treat the action as a custody modification and apply the Pierron framework: determine the established custodial environment, require clear and convincing evidence to support changes that alter that environment, and make best-interest findings on the relevant MCL 722.23 factors. *Pierron v Pierron*, 486 Mich 81, 85-91, 782 NW2d 480 (2010); *Shade v Wright*, 291 Mich App 17, 28-31; 805 NW2d 1 (2010); *Lieberman v Orr*, 301 Mich App 68, 78-87; 900 NW2d 130 (2017). The trial court abuses its discretion when it fails to evaluate each best-interest factor and instead enters an order that is so grossly violative of fact and logic as to evidence perversity of will. *Harvey v Harvey*, 470 Mich 186, 191-193; 680 NW2d 835 (2004); *Vodvarka v Grasmeyer*, 259 Mich App 499, 507-509; 675 NW2d 847 (2003).

Effective September 1, 2025, the Michigan Supreme Court amended MCR 3.207 and MCR 3.210 to tighten ex parte practice and to require a prompt evidentiary hearing before an order that changes a child's established custodial environment can be entered or continued in a contested case. When an ex parte order "could alter a child's established custodial environment," the court must (1) require specific verified facts regarding the existing environment and the impact of the requested order, and (2) schedule and hold an evidentiary hearing within short statutory deadlines (generally 21 days). MCR 3.207(B)(1)(a)-(b); MCR 3.210(C)(1).

B. Application

The August 6-8, 2025 ex parte order:

1. Lacked sworn, child-specific facts. The motion was unsworn and unverified; no affidavit laid out concrete, immediate, and irreparable harm to the child that would arise from the short delay necessary to provide notice and hold a hearing. That fails the threshold of MCR 3.207(B)(1).
2. Imposed the most drastic parenting-time restriction without the required evidentiary showing. A total suspension of all parenting time is the functional equivalent of awarding the other parent de facto sole physical custody. Under MCL 722.27a(3), that extreme remedy requires clear and convincing evidence that a suspension of parenting time would endanger the child's physical, mental, or emotional health. Under *Pierron* and *Lieberman*, the court had to treat this as a change to the established custodial environment and make corresponding best-interest findings under MCL 722.23. That never occurred.
3. Became an unlawful de facto custody modification as it was repeatedly continued without an evidentiary hearing. Rather than promptly convening an evidentiary hearing, the court "continued" the ex parte suspension at later settings while still lacking sworn testimony, expert proof, or specific statutory findings. The court was required to hold an evidentiary hearing within 21 days under MCR 3.207(B)(6). Instead, the first hearing occurred on October 29, 2025 -- 90 days after the ex parte order, violating the rule by a factor of 4.3x. This sequence inverts the statutory presumption: instead of presuming parenting time is appropriate unless clear and convincing evidence shows danger, the trial court treated no parenting time as the default and required Father to disprove untested allegations.
4. Conflicts with the 2025 amendments to MCR 3.207 and 3.210. To the extent the court extended the August 2025 ex parte suspension after September 1, 2025, the amended rules now expressly forbid changing the established custodial environment without an evidentiary hearing and require that such a hearing be scheduled when the ex parte order is entered. The continued deprivation without a live hearing, sworn proof, and

clear-and-convincing best-interest analysis violates these procedural safeguards.

5. The Rusco warrant email demonstrates the court's predisposition. The March 3, 2025 email from Judge McNeill's secretary requesting a warrant from a prosecutor -- before notice to Father -- reveals that the court apparatus was pre-committed to a punitive trajectory months before the August 2025 ex parte suspension. The court is not a neutral tribunal reacting to an emergency; it is a court that had already decided to escalate enforcement against Father.

6. No notice of any kind was provided to Father. The Fourteenth Amendment requires, at minimum, notice and an opportunity to be heard before the state deprives a parent of custody. The ex parte order of August 6, 2025 was entered without any notice to Father -- not even the minimal notice contemplated by MCR 3.207(B)(4). Father learned of the suspension only after it was in effect. This is not ex parte relief in the emergency-safety-valve sense; it is unilateral state action that severed the parent-child bond without a single word to the affected parent. Under MCR 7.121, this Court has plenary authority to fashion any remedy necessary to give complete relief, including vacating orders entered in violation of fundamental procedural rights.

C. Result

This Court should:

1. Vacate the August 6-8, 2025 ex parte parenting-time suspension and any later orders that continued or converted it without compliance with MCR 3.207, MCR 3.210, MCL 722.23, and MCL 722.27a(3);
2. Reinstate ordinary parenting time forthwith, subject only to narrowly tailored restrictions, if any, supported by actual evidence; and
3. Remand for a prompt, on-the-record evidentiary hearing where the trial court applies the Pierron/Lieberman framework to the established custodial environment and makes written findings under MCL 722.23 and MCL 722.27a(3).

Issue II: Reliance on an Unauthenticated "Second" Mental-Health Evaluation, While Discounting Father's HealthWest Report, Violated MRE 401-403, 702-703, 901 and Due Process

A. Law

Evidence used to restrict fundamental rights must be (1) relevant (MRE 401-403); (2) authenticated (MRE 901); and, when it purports to be expert or clinical opinion, (3) grounded in reliable principles and sufficient facts (MRE 702-703). Authentication under MRE 901(a) requires evidence sufficient to support a finding that the item "is what its proponent claims." This is a low threshold, but it is not zero -- documents cannot become dispositive simply by appearing in the file.

When state action severely restricts the parent-child relationship, heightened procedural safeguards are required; at a minimum, the court may not base such restrictions on unauthenticated or speculative material that the affected parent cannot meaningfully test or rebut. *Santosky v Kramer*, 455 US 745, 769-770 (1982); *re Sanders*, 495 Mich 394, 404-412; 852 NW2d 524 (2014). See also *People v Yost*, 278 Mich App 341, 35

749 NW2d 753 (2008) (authentication requirements).

B. Application

1. The HealthWest evaluation was ordered by the court and complied with; it directly addressed risk. Father underwent a HealthWest evaluation at the court's direction. On September 4, 2025, clinicians Mitchell and DeAugustine established a clean baseline -- the report found no diagnosis or safety risk that would justify suspension or supervision of parenting time. That court-ordered, completed evaluation should have been central to any risk analysis.

2. The 7-day diagnostic flip is clinically implausible and fails MRE 702-703 foundation requirements. Seven days after the clean baseline, a different clinician (Gansen) issued a "Rule-out Delusional Disorder" assessment on September 11, 2025. Delusional Disorder requires sustained, chronic presentation -- it does not manifest in 7 days. The clinician's own report admitted it was "difficult to definitively assert whether concerns are factual or delusional." This equivocation underscores the speculative nature of the assessment. Under MRE 702, expert testimony must be based on "sufficient facts or data" and "reliable principles and methods" applied "reliably to the facts." Under MRE 703, the facts or data underlying an expert opinion must be "of a type reasonably relied upon by experts in the field." A "rule-out" notation -- an explicit admission that the diagnosis has not been confirmed -- does not constitute a reliable finding. The September 4 evaluation established a baseline; the September 11 reversal had no clinical foundation to override it. The trial court's reliance on the speculative assessment was a foundational failure under MRE 702-703.

3. The HealthWest off-record coordination taints the clinical evidence. The October 29, 2025 chart meeting reveals that Rusco -- Judge McNeill's secretary -- contacted clinicians directly and arranged subpoenas via email, bypassing formal court filing. This constitutes a Canon 3(B)(7) ex parte communication between court staff and a witness in a pending matter, and a Canon 4 violation through improper delegation of judicial function to non-judicial personnel. When clinical witnesses are being coordinated by the judge's own secretary through off-record channels, the independence of their testimony is fundamentally compromised. The clinical record after Rusco's intervention cannot be treated as independent evidence.

4. The court credited a purported "second" evaluation that Father never underwent. The court treated an unauthenticated "second" evaluation as dispositive -- yet:

- Father never scheduled, attended, or consented to a second full evaluation;
- The document was never authenticated by the purported evaluator or any witness under MRE 901;
- It lacked chain-of-custody foundation; and
- It was never subjected to cross-examination or reliability scrutiny under MRE 702-703.

5. The asymmetry is itself evidence of arbitrary decision-making. Courts cannot lawfully ignore the properly sourced, court-ordered clinical evidence (HealthWest, September 4 baseline) but rely heavily on an unauthenticated substitute. That asymmetry is both an evidentiary error under MRE 401-403 and 901 and a due-process error because it uses unreliable materials to justify ongoing interference with fundamental rights.

C. Result

This Court should:

1. Hold that the trial court may not rely on any "second" mental-health evaluation unless and until it is properly authenticated (MRE 901), its author testifies (or a proper hearsay exception applies), and a reliable foundation is laid under MRE 702-703;
2. Direct the trial court to admit and give due consideration to the HealthWest evaluation that Father actually completed, subject to cross-examination and argument regarding weight; and
3. If mental-health evidence is again outcome-determinative, require a neutral, court-appointed evaluator whose report is disclosed to both parties and whose opinions are subject to full cross-examination before a parenting-time suspension or supervision is ordered.

Issue III: Suppression of Defense Evidence and Barriers to Motion Practice Denied the Right to Be Heard

A. Law

Parents have a fundamental liberty interest in the care, custody, and control of their children, protected by both the federal and Michigan constitutions. *Troxel v Granville*, 530 US 57, 65-66 (2000); *In re Sanders*, 495 MI 409-412. That right can only be restricted with adequate process: notice, an opportunity to be heard, and adjudication supported by admissible evidence and articulated findings.

MCR 3.210 requires evidentiary hearings and explicit findings when custody or parenting-time orders are contested. MCR 2.517 and MCR 3.210(D) require findings of fact and conclusions of law sufficient for appellate review. Pro se status does not diminish a litigant's right to introduce evidence, file motions, or obtain rulings based on governing law. Judicial-ethics guidance likewise stresses that judges must ensure self-represented litigants are afforded a full and fair opportunity to be heard. See Canon 3(A)(3).

B. Application

1. Exclusion of defense exhibits. The trial court refused to admit or attach meaningful weight to:
 - The HealthWest evaluation (September 4, 2025 clean baseline);
 - AppClose communication and exchange logs;
 - Police records and clarifications showing no PPO or exchange violations;
 - The Norton Shores Police Department letter confirming the "meth" attribution was false; and
 - Father's recording in which Mother and her father stated they would ensure he would not see his son.

At the same time, the court entertained, routed, and relied on unsworn or ex parte materials from the opposing party, including a USB recording submitted by Emily's family.

2. Barriers to motion practice and "Do not file anymore" directive. At an early objection hearing, the judge told Father: "Do not file any more. I will not look at it." That statement, followed by the imposition of a barrier requirement on Father's motions without a vexatious-litigant finding, effectively shut the courthouse doors on a parent attempting to challenge orders that removed his child. MCR 7.216(C) establishes specific procedure before a litigant may be declared vexatious: the court must find that the individual has "habitual

persistently, and without reasonable cause" engaged in vexatious conduct, after notice and hearing. No such finding was made here. Imposing a financial barrier on a parent seeking to contest a total parenting-time suspension, without compliance with MCR 7.216, is incompatible with the Child Custody Act's mandate and with due process.

3. The Martini "Don't Speak" email confirms predetermined outcomes and constitutes ineffective assistance of counsel. Attorney Martini's February 28, 2025, 1:05 PM email -- instructing Father that the judge "doesn't want to hear from you unless asked" and that "she knows there is nothing substantive in the motion" -- confirms that the hearings were not genuine opportunities to be heard. Under *Strickland v Washington*, 466 US 668, 687-688, 694 (1984), the Sixth Amendment guarantees effective assistance of counsel; counsel's performance is deficient when it falls below an objective standard of reasonableness. An attorney who instructs her client not to speak at his own hearing, who communicates the judge's predetermined disposition, and who sits silent while the client is muted is not providing the "adversarial testing" that the Sixth Amendment demands. When appointed counsel communicates that the judge has already decided, the constitutional right to a hearing is reduced to theater.

4. Lack of child-specific findings. Orders removing or restricting parenting time were issued without:

- A clear statement of the existing custodial environment;
- Explicit application of each relevant MCL 722.23 factor;
- Findings under MCL 722.27a(3) explaining how parenting time would endanger the child; or
- Articulation of why lesser restrictions were insufficient.

5. Cumulative effect: a hollow process. The combination of excluded defense evidence, an instruction not to file further motions, a filing bond without vexatious-litigant findings, predetermined hearing outcomes, and orders lacking statutory analysis converts the nominal "opportunity to be heard" into an empty ritual. That is precisely what *Troxel* and *Sanders* forbid when the state interferes with parent-child relationships.

C. Result

This Court should:

1. Vacate custody and parenting-time orders entered while the trial court was refusing to admit or consider properly offered defense evidence and while motion practice was effectively blocked;
2. Direct the trial court to accept and rule on properly filed motions without a bond requirement unless and until it enters a lawful vexatious-litigant order with notice, hearing, and findings; and
3. Require that any future custody or parenting-time decision contain written findings under MCR 2.517 and MCR 3.210(D), addressing the established custodial environment, each relevant MCL 722.23 factor, and the clear-and-convincing standard in MCL 722.27a(3).

Issue IV: Misuse of PPO Process and Contempt Powers to Criminalize Exchanges and Amplify Custody Restrictions

A. Law

Domestic-relationship PPOs are governed by MCL 600.2950 and associated rules. When a court uses contempt powers to enforce a PPO, that contempt is criminal in nature and must satisfy criminal-procedure safeguards, including proof beyond a reasonable doubt and the right to be present and defend. In re Contempt of Henry, 282 Mich App 656, 668; 765 NW2d 44 (2009).

MCR 3.708 governs PPO enforcement and contempt. It requires notice, a show-cause hearing, and proof of a knowing violation of a valid PPO before criminal contempt sanctions may be imposed. It does not authorize using PPO violations as an informal vehicle to restructure custody or parenting time outside the Child Custody Act.

Hunter v Hunter, 484 Mich 247, 265-268; 771 NW2d 694 (2009), emphasizes that custody and parenting time must be governed by the Child Custody Act, not by parallel or collateral mechanisms that bypass the statutory framework. PPOs protect against stalking, harassment, or violence; they are not a shortcut to changing legal custody or eliminating parenting time.

B. Application

1. Parallel PPO track for routine parenting-time conflict. The court advanced a parallel PPO enforcement track built on disputed or benign communications about parenting-time exchanges -- messages that, in context, reflected attempts to coordinate contact rather than harass or threaten. Despite police responses that found no violation or risk at certain exchanges, those same events were treated as PPO violations in court.

2. Escalating contempt without criminal-contempt safeguards. PPO show-cause hearings led to contempt findings and jail time (59 days total), which were then used to justify further restricting or suspending Father's parenting time. The record does not show that the court:

- Demanded proof beyond a reasonable doubt of each alleged PPO violation;
- Made clear, written findings as required by Henry and MCR 3.708; or
- Considered less-restrictive remedies before weaponizing contempt findings to alter parenting time.

3. Asymmetric enforcement. The court did not hold the other parent to the same enforcement standard when she withheld parenting time or threatened trespass against Father. Documented gatekeeping -- including 100 days of withholding (March-May 2024), 230+ days of ongoing withholding (July 2025-present), and Albin Watson's intimidation at exchanges -- received no equivalent show-cause scrutiny.

4. End-run around the Child Custody Act. In practice, PPO modifications and contempt sentences became the real custody mechanism; parenting-time and custodial status were repeatedly tightened through PPO proceedings rather than through Child Custody Act motions subject to MCL 722.23, MCL 722.27, MCL 722.27a, and the evidentiary safeguards of MCR 3.210. That is precisely what Hunter forbids.

5. Birthday messages as "contempt" -- disproportionate sanctions. The November 26, 2025 contempt finding and 45-day sentence were based in part on AppClose birthday messages to L.D.W. Characterizing a father's birthday messages to his child as a PPO violation warranting 45 days of incarceration epitomizes the weaponization of PPO process and exposes the absurdity of treating the PPO as a custody tool. Combined with the November 15, 2025 14-day sentence, Father served 59 total days in jail -- losing two jobs (Shape Co

MetalArc) and two homes (including an illegal lockout at Shady Oaks MHP). Even if the underlying content of the findings were procedurally valid, the disproportionality of 59 days' incarceration for birthday messages and parenting-exchange communications reflects an abuse of discretion so palpable that it evidences "a perversity of will" under *Harvey v Harvey*, 470 Mich at 191-193. The sanctions served no remedial purpose; they were punitive, and they achieved the practical effect of eliminating Father from L.D.W.'s life by destroying his economic stability.

C. Result

This Court should:

1. Vacate PPO-based criminal contempt findings and sanctions entered without strict compliance with MCR 3.708 and *Henry*;
2. Hold that PPO enforcement may not be used to circumvent Child Custody Act standards for modifying custody or parenting time; and
3. Direct the trial court, on remand, to address allegations of parental alienation, gatekeeping, or interference with parenting time within the Child Custody Act framework, with balanced enforcement applied to both parents.

Issue V: Appearance of Bias and Probability of Actual Bias Require Disqualification and Reassignment

A. Law

MCR 2.003(C)(1) requires judicial disqualification where a judge's impartiality "might reasonably be questioned," including where the judge has personal knowledge of disputed evidentiary facts, has prejudged the merits, or exhibits deep-seated favoritism or antagonism that makes fair judgment impossible. Due process is violated when the probability of actual bias is too high to be constitutionally tolerable. *Cain v Dep't of Corrections*, 451 Mich 470, 497; 548 NW2d 210 (1996); *Caperton v A.T. Massey Coal Co*, 556 US 868, 877-878 (2009).

B. Application

The record reflects a pattern that would cause any objective observer to question impartiality:

1. Ex parte and chambers-only routing of the HealthWest report. Father's court-ordered evaluation was delivered directly to chambers, without contemporaneous disclosure or discussion in open court, and was never integrated into the court's analysis. The court's refusal to admit or weigh this court-ordered neutral evidence suggests a predisposition to disregard information favorable to Father.
2. Preference for an unauthenticated "second" evaluation. The court repeatedly referenced or relied on a "second" evaluation Father never underwent, without authentication or expert testimony. This preference for a non-existent evaluation over the genuine HealthWest report signals willingness to accept any inculpatory narrative while rejecting exculpatory evidence.
3. The Rusco ex parte warrant email (March 3, 2025). Judge McNeill's own secretary emailed a prosecu-

requesting a warrant against Father -- CC'ing defense counsel only afterward. A court that directs its staff to request warrants from prosecutors against a litigant, outside the adversarial process, cannot credibly claim neutrality. This is not a marginal appearance issue; it is direct evidence of the court apparatus operating as an advocate against Father.

4. The Martini "Don't Speak" email (February 28, 2025). Defense counsel's email reveals either direct communication with chambers about the judge's disposition or, at minimum, widespread perception among officers of the court that the judge had prejudged Father's case. Either way, the appearance of bias is overwhelming.

5. HealthWest off-record coordination (October 29, 2025). Rusco's direct contact with clinicians and arrangement of subpoenas via email -- bypassing formal filing -- demonstrates that the court's staff was managing witnesses outside the docket, further compromising the appearance of a neutral proceeding.

6. Directive shutting down Father's filings. The judge told Father on the record not to file additional material and that such filings would not be reviewed, then imposed a filing bond without a vexatious-litigant finding. A reasonable observer would conclude the court had grown openly hostile to Father's attempts to seek relief.

7. Selective enforcement of PPO and parenting-time rules. The court aggressively enforced alleged PPO violations and conditioned parenting time on Father's compliance with questionable conditions, yet did not do so with equal vigor when Mother withheld parenting time or her family engaged in intimidation at exchange. Persistent enforcement asymmetry reinforces the appearance of bias.

8. Stigmatizing characterizations without neutral expert proof. Orders incorporated stigmatizing mental-health labels ("crazy," "liar") before any neutral expert testimony had been admitted, suggesting the court adopted an adverse narrative early and filtered subsequent evidence through that lens.

9. Muting Father during hearings. At the November 15, 2025 hearing, Father was muted three times while attempting to testify on a remote proceeding -- while his appointed counsel sat silent. A court that silences a litigant while his attorney offers no advocacy has abandoned any pretense of fair process.

10. Structural bias -- Rusco ex parte communications pattern. The record now contains three independent instances of Pamela Rusco -- the judge's secretary -- engaging in ex parte communications: (a) the March 2025, 8:51 AM email to prosecutor Jamie Hooker requesting a warrant (Canon 3(B)(7) + Canon 4 delegation); (b) the October 29, 2025 off-record coordination with HealthWest clinicians arranging subpoenas via email (Canon 3(B)(7)); and (c) the routing of the HealthWest evaluation directly to chambers without disclosure. Three independent ex parte violations by the same court staff member is not inadvertence -- it is a structural feature of how this court operates. When the judge's secretary functions as an investigative arm, coordinating with prosecutors and clinical witnesses outside the adversarial process, the structural neutrality required by the Due Process Clause is absent. *Caperton*, 556 US at 877-878 (the inquiry is whether "the probability of actual bias ... is too high to be constitutionally tolerable").

Taken together, these ten features -- spanning ex parte communications, off-record witness coordination, structural staff bias, predetermined hearing outcomes, selective enforcement, record-blocking, ineffectual assistance of appointed counsel, and stigmatizing characterizations -- create a substantial appearance and

significant probability of actual bias. Continuing to litigate custody, parenting time, and PPO issues before the same judge would undermine public confidence and render any remedial orders hollow. The pattern warrants not only reassignment but referral to the Judicial Tenure Commission for investigation of the Canon 3 and Canon 4 violations documented herein.

C. Result

This Court should order disqualification and reassignment under MCR 2.003(C), directing that all further proceedings in the custody case (No. 2024-001507-DC) and the related PPO case (No. 2023-5907-PP) be conducted before a different circuit-court judge, who must conduct a fresh evidentiary hearing untainted by prior impressions.

VI. RELIEF REQUESTED

Appellant respectfully requests that this Court:

1. Vacate the ex parte parenting-time suspension. Vacate the July 17, 2025 custody modification and the August 6-8, 2025 ex parte order suspending all parenting time, and any subsequent orders that continued or converted that suspension without (a) verified, child-specific allegations of immediate and irreparable harm; (b) a timely evidentiary hearing within 21 days, and (c) written findings under MCL 722.23 and MCL 722.27a(3).
2. Reinstate parenting time pending lawful adjudication and order immediate restoration. Reinstate Appellant's ordinary parenting time forthwith, subject only to narrowly tailored conditions supported by actual evidence, pending a prompt evidentiary hearing that complies with MCR 3.207, MCR 3.210, and the Child Custody Act. Pursuant to MCR 7.121, this Court has authority to order any relief necessary. The child has now been deprived of contact with his father for 230+ days. Each additional day of separation causes compounding harm to the parent-child bond that cannot be remedied retroactively. Immediate restoration of parenting time is necessary to prevent irreparable injury.
3. Correct the mental-health-evidence framework. (a) Strike any reliance on a purported "second" mental-health evaluation unless properly authenticated and supported by live expert testimony; (b) Admit and weigh the HealthWest evaluation, with both parties entitled to examine and cross-examine its author; and (c) If mental-health issues remain outcome-determinative, order a neutral, court-appointed evaluation with full disclosure and testing at an evidentiary hearing.
4. Remove unlawful barriers to motion practice. Vacate any order that imposes a bond or blanket filing restriction on Father's motions absent a lawful vexatious-litigant determination; prohibit further filing barriers unless imposed after notice, a hearing, and specific findings.
5. Vacate PPO-based contempt and realign PPO practice with the Child Custody Act. (a) Vacate PPO-based criminal contempt findings and sentences entered without compliance with MCR 3.708 and Henry; (b) Prohibit using PPO show-cause proceedings as a surrogate to effect custody or parenting-time changes; and (c) Direct the trial court to address alleged interference, alienation, or gatekeeping through Child Custody Act

mechanisms, with balanced enforcement against both parents.

6. Order disqualification and reassignment. Disqualify the current judge under MCR 2.003(C) and reassign both the custody case (No. 2024-001507-DC) and the related PPO case (No. 2023-5907-PP) to a different circuit-court judge for all further proceedings. The reassigned judge must conduct a fresh evidentiary hearing untainted by the prior judge's demonstrated predisposition, and must make written findings under MCR 2.517 and MCR 3.210(D) addressing the established custodial environment, each applicable best-interest factor, and the clear-and-convincing standard required by MCL 722.27a(3).

7. Refer judicial misconduct to the Judicial Tenure Commission. The record documents three independent Canon 3(B)(7) ex parte violations by court staff (Rusco warrant email of March 3, 2025; Rusco off-record coordination with HealthWest clinicians on October 29, 2025; chambers-only routing of the HealthWest report), Canon 4 delegation violations (secretary requesting warrants from prosecutors), stigmatizing characterizations from the bench ("liar," "crazy") without evidentiary foundation, and systematic denial of the right to be heard. Appellant respectfully requests that this Court refer the documented pattern of judicial misconduct to the Michigan Judicial Tenure Commission for investigation, pursuant to this Court's inherent supervisory authority over the administration of justice and MCR 9.200 et seq.

8. Award make-up parenting time. Order make-up parenting time equal to all days wrongfully denied under the unlawful suspension -- currently 230+ days -- scheduled in a manner that promptly restores the parent-child relationship while minimizing disruption to the child's routine.

9. Require compliant findings on remand. Require that, on remand, any custody or parenting-time order include written findings under MCR 2.517 and MCR 3.210(D), expressly addressing: the established custodial environment; each applicable best-interest factor in MCL 722.23; and the clear-and-convincing evidentiary standard of MCL 722.27a(3) before any suspension, supervision, or material restriction of parenting time.

10. Preservation of right to seek further review. Appellant preserves the right to seek leave to appeal to the Michigan Supreme Court under MCR 7.305 if this Court does not grant the relief requested herein, including on the constitutional due-process questions presented.

This disposition restores the statutory presumption favoring strong parent-child relationships, enforces Michigan's ex parte and evidentiary safeguards, aligns trial-court practice with the 2025 amendments to MCL 3.207 and 3.210, cures the appearance and probability of bias that now pervade the record, and preserves the integrity of judicial proceedings by referring documented misconduct to the Judicial Tenure Commission.

VII. VERIFICATION

I, Andrew James Pigors, declare under penalty of perjury under the laws of the State of Michigan that the factual statements in this Brief on Appeal are true to the best of my knowledge, information, and belief.

Dated: _____

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VIII. CERTIFICATE OF SERVICE

I, Andrew James Pigors, certify that on _____, 2026, I served a true copy of this Brief Appeal on:

Emily A. Watson
Defendant-Appellee
2160 Garland Drive
Norton Shores, MI 49441

via first-class U.S. Mail, postage prepaid.

Muskegon County Circuit Court
Clerk of the Court
990 Terrace Street
Muskegon, MI 49442

via first-class U.S. Mail, postage prepaid.

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APPENDIX REFERENCE

The following documents are included or referenced in the Appendix to this Brief, organized by tab, pursuant to MCR 7.212(C)(7) and MCR 7.211(C):

Tab	Description	Date
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A	Ex Parte Order Suspending All Parenting Time	August 6-8, 2025
B	HealthWest Evaluation -- Clean Baseline (Mitchell/DeAugustine)	September 4, 2025

C	HealthWest "Rule-Out Delusional Disorder" Assessment (Gansen)	September 11, 2025
D	Rusco Email to Prosecutor Hooker -- Warrant Request (8:51 AM)	March 3, 2025
E	Martini "Don't Speak" Email to Father (1:05 PM)	February 28, 2025
F	HealthWest Chart Memo -- Rusco Off-Record Coordination	October 29, 2025
G	Norton Shores PD Letter -- False "Meth" Attribution Correction	2025
H	Contempt Orders -- Show Cause #5, #6, #7 (59 Days Total)	November 15-26, 2025